

Directive 2001/83/EC - Advertising

Article 86

Title: Definition and Scope of Medicinal Product Advertising

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 86, 2001, as amended/consolidated

Plain English Summary:

Article 86 defines advertising of medicinal products broadly as activities intended to promote the prescription, supply, sale or consumption of medicinal products. It includes advertising to the public and healthcare professionals, sales representative visits, samples, promotional benefits and sponsorship of promotional or scientific meetings.

This matters for an Ayurvedic product because once the product is legally treated as a medicinal product, promotional activities may fall under these EU advertising rules.

The Exact Legal Text:

Article 86

1. For the purposes of this Title, 'advertising of medicinal products' shall include any form of door-to-door information, canvassing activity or inducement designed to promote the prescription, supply, sale or consumption of medicinal products; it shall include in particular:

the advertising of medicinal products to the general public,

advertising of medicinal products to persons qualified to prescribe or supply them,

visits by medical sales representatives to persons qualified to prescribe medicinal products,

the supply of samples,

the provision of inducements to prescribe or supply medicinal products by the gift, offer or promise of any benefit or bonus, whether in money or in kind, except when their intrinsic value is minimal,

sponsorship of promotional meetings attended by persons qualified to prescribe or supply medicinal products,

sponsorship of scientific congresses attended by persons qualified to prescribe or supply medicinal products and in particular payment of their travelling and accommodation expenses in connection therewith.

2. The following are not covered by this Title:

the labelling and the accompanying package leaflets, which are subject to the provisions of Title V,

correspondence, possibly accompanied by material of a non-promotional nature, needed to answer a specific question about a particular medicinal product,

factual, informative announcements and reference material relating, for example, to pack changes, adverse-reaction warnings as part of general drug precautions, trade catalogues and price lists, provided they include no product claims,

information relating to human health or diseases, provided that there is no reference, even indirect, to medicinal products.

Keywords/Triggers:

EU medicinal advertising, Ayurvedic product advertising, herbal medicine promotion, medicinal product claims, healthcare advertising, medicine samples, pharmaceutical promotion

Article 87

Title: General Principles for Medicinal Product Advertising

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 87, 2001, as amended/consolidated

Plain English Summary:

Medicinal products that do not have the required marketing authorization cannot be advertised. Advertising must be consistent with the product's approved characteristics, encourage rational use and must not be misleading.

For an Ayurvedic company, this means you should not promote a product as an EU medicinal product before the necessary authorization, and promotional claims must match its authorized characteristics.

The Exact Legal Text:

Article 87

1. Member States shall prohibit any advertising of a medicinal product in respect of which a marketing authorization has not been granted in accordance with Community law.
2. All parts of the advertising of a medicinal product must comply with the particulars listed in the summary of product characteristics.
3. The advertising of a medicinal product:

shall encourage the rational use of the medicinal product, by presenting it objectively and without exaggerating its properties,

shall not be misleading.

Keywords/Triggers:

medicine advertising authorization, EU advertising approval, Ayurvedic medicinal claims, misleading health claims, rational medicine advertising, medicinal product authorization, EU herbal advertising

Article 88

Title: Advertising Restrictions for Medicinal Products

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 88, 2001, as amended/consolidated

Plain English Summary:

Certain medicinal products cannot be advertised directly to the general public, particularly prescription-only medicines and products containing certain internationally controlled substances. Non-prescription medicines may generally be advertised to the public if they are intended for use without medical intervention, subject to the applicable rules.

This is relevant when determining whether an Ayurvedic medicinal product can be promoted directly to consumers in the EU.

The Exact Legal Text:

Article 88

1. Member States shall prohibit the advertising to the general public of medicinal products which:

(a) are available on medical prescription only, in accordance with Title VI;

(b) contain substances defined as psychotropic or narcotic by international convention, such as the United Nations Conventions of 1961 and 1971.

2. Medicinal products may be advertised to the general public which, by virtue of their composition and purpose, are intended and designed for use without the intervention of a medical practitioner for diagnostic purposes or for the prescription or monitoring of treatment, with the advice of the pharmacist, if necessary.
3. Member States shall be entitled to ban, on their territory, advertising to the general public of medicinal products the cost of which may be reimbursed.
4. The prohibition contained in paragraph 1 shall not apply to vaccination campaigns carried out by the industry and approved by the competent authorities of the Member States.
5. The prohibition referred to in paragraph 1 shall apply without prejudice to Article 14 of Directive 89/552/EEC.
6. Member States shall prohibit the direct distribution of medicinal products to the public by the industry for promotional purposes.

Keywords/Triggers:

EU public advertising, prescription medicine advertising, OTC herbal advertising, Ayurvedic consumer advertising, medicinal product promotion, direct distribution, EU advertising restrictions

Article 89

Title: Mandatory Information in Public Medicinal Advertising

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 89, 2001, as amended/consolidated

Plain English Summary:

Advertising directed at the general public must clearly be identifiable as advertising and clearly identify the medicinal product. It must provide minimum information, including the product name, information needed for correct use and an instruction to read the package leaflet or packaging.

This is directly useful for an Ayurvedic medicinal product advertised to EU consumers.

The Exact Legal Text:

Article 89

1. Without prejudice to Article 88, all advertising to the general public of a medicinal product shall:
 - (a) be set out in such a way that it is clear that the message is an advertisement and that the product is clearly identified as a medicinal product;
 - (b) include the following minimum information:
 - the name of the medicinal product, as well as the common name if the medicinal product contains only one active substance,
 - the information necessary for correct use of the medicinal product,
 - an express, legible invitation to read carefully the instructions on the package leaflet or on the outer packaging, as the case may be.
2. Member States may decide that the advertising of a medicinal product to the general public may, notwithstanding paragraph 1, include only the name of the medicinal product or its international non-proprietary name, where this exists, or the trademark if it is intended solely as a reminder.

Keywords/Triggers:

EU public medicine advertising, medicinal advertising information, Ayurvedic product advertisement, herbal medicine advertisement, package leaflet advertising, medicine name advertising

Article 90

Title: Prohibited Claims in Public Medicinal Advertising

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 90, 2001, as amended/consolidated

Plain English Summary:

Article 90 prohibits numerous types of consumer-facing medicinal advertising claims. These include claims that treatment is unnecessary, that the medicine has guaranteed effects, that it is safer because it is natural, or that it is equivalent to another treatment.

This is particularly important for Ayurveda, because claims such as “100% natural, therefore completely safe” could fall within the prohibited type of advertising described here when the product is being advertised as a medicinal product.

The Exact Legal Text:

Article 90

The advertising of a medicinal product to the general public shall not contain any material which:

- (a) gives the impression that a medical consultation or surgical operation is unnecessary, in particular by offering a diagnosis or by suggesting treatment by mail;
- (b) suggests that the effects of taking the medicine are guaranteed, are unaccompanied by adverse reactions or are better than, or equivalent to, those of another treatment or medicinal product;
- (c) suggests that the health of the subject can be enhanced by taking the medicine;
- (d) suggests that the health of the subject could be affected by not taking the medicine; this prohibition shall not apply to the vaccination campaigns referred to in Article 88(4);
- (e) is directed exclusively or principally at children;
- (f) refers to a recommendation by scientists, health professionals or persons who are neither of the foregoing but who, because of their celebrity, could encourage the consumption of medicinal products;
- (g) suggests that the medicinal product is a foodstuff, cosmetic or other consumer product;
- (h) suggests that the safety or efficacy of the medicinal product is due to the fact that it is natural;
- (i) could, by a description or detailed representation of a case history, lead to erroneous self-diagnosis;
- (j) refers, in improper, alarming or misleading terms, to claims of recovery;
- (k) uses, in improper, alarming or misleading terms, pictorial representations of changes in the human body caused by disease or injury, or of the action of a medicinal product on the human body or parts thereof.

Keywords/Triggers:

natural medicine advertising, Ayurvedic advertising claims, misleading herbal claims, guaranteed cure claim, natural safety claim, medicinal advertising restrictions, EU health claims

Article 91

Title: Advertising to Healthcare Professionals

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 91, 2001, as amended/consolidated

Plain English Summary:

Advertising medicinal products to people qualified to prescribe or supply them must include essential information consistent with the product's approved characteristics and its supply classification. Member States may also require price and reimbursement information.

This applies to promotion of an Ayurvedic medicinal product to EU doctors, pharmacists or other qualified suppliers.

The Exact Legal Text:

Article 91

1. Any advertising of a medicinal product to persons qualified to prescribe or supply such products shall include:

essential information compatible with the summary of product characteristics;

the supply classification of the medicinal product.

Member States may also require such advertising to include the selling price or indicative price of the various presentations and the conditions for reimbursement by social security bodies.

2. Member States may decide that the advertising of a medicinal product to persons qualified to prescribe or supply such products may, notwithstanding paragraph 1, include only the name of the medicinal product, or its international non-proprietary name, where this exists, or the trademark, if it is intended solely as a reminder.

Keywords/Triggers:

healthcare professional advertising, EU doctor advertising, pharmacist advertising, medicinal product promotion, summary of product characteristics, supply classification, Ayurvedic medicine promotion

Article 92

Title: Scientific Documentation Used in Medicinal Advertising

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 92, 2001, as amended/consolidated

Plain English Summary:

Promotional documentation provided to healthcare professionals must contain the minimum information required by Article 91 and identify when it was prepared or last revised. Its information must be accurate, current, verifiable and sufficiently complete to allow the recipient to assess the medicinal product's therapeutic value.

The Exact Legal Text:

Article 92

1. Any documentation relating to a medicinal product which is transmitted as part of the promotion of that product to persons qualified to prescribe or supply it shall include, as a minimum, the particulars listed in Article 91(1) and shall state the date on which it was drawn up or last revised.
2. All the information contained in the documentation referred to in paragraph 1 shall be accurate, up-to-date, verifiable and sufficiently complete to enable the recipient to form his or her own opinion of the therapeutic value of the medicinal product concerned.
3. Quotations as well as tables and other illustrative matter taken from medical journals or other scientific works for use in the documentation referred to in paragraph 1 shall be faithfully reproduced and the precise sources indicated.

Keywords/Triggers:

medicinal advertising evidence, scientific advertising claims, healthcare professional materials, therapeutic value evidence, pharmaceutical promotional documents, EU herbal evidence

Article 94

Title: Gifts and Benefits in Medicinal Promotion

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 94, 2001, as amended/consolidated

Plain English Summary:

When medicinal products are promoted to healthcare professionals, gifts or financial/in-kind benefits generally cannot be offered unless they are inexpensive and relevant to medical or pharmacy practice. Hospitality at promotional events must remain limited to the main purpose of the event.

This matters to Ayurvedic companies promoting medicinal products to EU healthcare professionals.

The Exact Legal Text:**Article 94**

1. Where medicinal products are being promoted to persons qualified to prescribe or supply them, no gifts, pecuniary advantages or benefits in kind may be supplied, offered or promised to such persons unless they are inexpensive and relevant to the practice of medicine or pharmacy.
2. Hospitality at sales promotion events shall always be strictly limited to their main purpose and must not be extended to persons other than health-care professionals.
3. Persons qualified to prescribe or supply medicinal products shall not solicit or accept any inducement prohibited under paragraph 1 or contrary to paragraph 2.
4. Existing measures or trade practices in Member States relating to prices, margins and discounts shall not be affected by paragraphs 1, 2 and 3.

Keywords/Triggers:

EU pharmaceutical gifts, healthcare professional inducements, Ayurvedic doctor promotion, medicinal product benefits, promotional hospitality, pharmaceutical compliance